



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB2437: EMS reciprocity; compact

BLISS FLOOR AMENDMENT

1. Specifies that a person applying for EMCT certification pursuant to the EMS Compact must possess a valid fingerprint clearance card beginning the effective date of the compact or FBI approval.
2. Clarifies that the confidential records provisions do not prevent DHS from submitting information in compliance with the EMS compact.
3. Makes conforming changes.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2437
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 36-2202, Arizona Revised Statutes, is amended
3 to read:

4 36-2202. Duties of the director; qualifications of medical
5 director

6 A. The director shall:

7 1. Appoint a medical director of the emergency medical services and
8 trauma system.

9 2. Adopt standards and criteria for the denial or granting of
10 certification and recertification of emergency medical care technicians.
11 These standards shall allow the department to certify qualified emergency
12 medical care technicians who have completed statewide standardized
13 training required under section 36-2204, paragraph 1 and a standardized
14 certification test required under section 36-2204, paragraph 2, who hold
15 valid certification with a national certification organization or who have
16 completed training and testing by the United States armed forces at a
17 level comparable to the national standards for emergency medical care
18 technicians. Before the director may consider approving a statewide
19 standardized training or a standardized certification test, or both, each
20 of these must first be recommended by the medical direction commission and
21 the emergency medical services council to ensure that the standardized
22 training content is consistent with national education standards and that
23 the standardized certification test examines comparable material to that
24 examined in the tests of a national certification organization.
25 [BEGINNING THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION OR UPON
26 APPROVAL FROM THE FEDERAL BUREAU OF INVESTIGATION, A PERSON APPLYING FOR
27 INITIAL CERTIFICATION AS AN EMERGENCY MEDICAL CARE TECHNICIAN PURSUANT TO
28 THE EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE INTERSTATE COMPACT AND

1 IN COMPLIANCE WITH THE REQUIREMENTS OF SECTION 36-2259 SHALL POSSESS A
2 VALID FINGERPRINT CLEARANCE CARD PURSUANT TO TITLE 41, CHAPTER 12, ARTICLE
3 3.1.]

4 3. Adopt standards and criteria that pertain to the quality of
5 emergency care pursuant to section 36-2204.

6 4. Adopt rules necessary to carry out this chapter. Each rule
7 shall identify all sections and subsections of this chapter under which
8 the rule was formulated.

9 5. Adopt reasonable medical equipment, supply, staffing and safety
10 standards, criteria and procedures to issue a certificate of registration
11 to operate an ambulance.

12 6. Maintain a state system for recertifying emergency medical care
13 technicians, except as otherwise provided by section 36-2202.01, that is
14 independent from any national certification organization recertification
15 process. This system shall allow emergency medical care technicians to
16 choose to be recertified under the state or the national certification
17 organization recertification system subject to subsection H of this
18 section.

19 B. Emergency medical technicians who choose the state
20 recertification process shall recertify in one of the following ways:

21 1. Successfully completing an emergency medical technician
22 refresher course approved by the department.

23 2. Successfully completing an emergency medical technician
24 challenge course approved by the department.

25 3. For emergency medical care technicians who are currently
26 certified at the emergency medical technician level by the department,
27 attesting on a form provided by the department that the applicant holds a
28 valid and current cardiopulmonary resuscitation certification, has and
29 will maintain documented proof of a minimum of twenty-four hours of
30 continuing medical education within the last two years consistent with
31 department rules and has functioned in the capacity of an emergency
32 medical technician for at least two hundred forty hours during the last
33 two years.

34 C. After consultation with the emergency medical services council,
35 the director may authorize pilot programs designed to improve the safety
36 and efficiency of ambulance inspections for governmental or
37 quasi-governmental entities that provide emergency medical services in
38 this state.

39 D. The rules, standards and criteria adopted by the director
40 pursuant to subsection A, paragraphs 2, 3, 4 and 5 of this section shall
41 be adopted in accordance with title 41, chapter 6, except that the
42 director may adopt on an emergency basis pursuant to section 41-1026 rules
43 relating to the regulation of ambulance services in this state necessary
44 to protect the public peace, health and safety in advance of adopting
45 rules, standards and criteria as otherwise provided by this subsection.

46 E. The director may waive the requirement for compliance with a
47 protocol adopted pursuant to section 36-2205 if the director determines

1 that the techniques, drug formularies or training makes the protocol
2 inconsistent with contemporary medical practices.

3 F. The director may suspend a protocol adopted pursuant to
4 section 36-2205 if the director does all of the following:

5 1. Determines that the rule is not in the public's best interest.

6 2. Initiates procedures pursuant to title 41, chapter 6 to repeal
7 the rule.

8 3. Notifies all interested parties in writing of the director's
9 action and the reasons for that action. Parties interested in receiving
10 notification shall submit a written request to the director.

11 G. To be eligible for appointment as the medical director of the
12 emergency medical services and trauma system, the person shall be
13 qualified in emergency medicine and shall be licensed as a physician in
14 one of the states of the United States.

15 H. Applicants for certification shall apply to the director for
16 certification. Emergency medical care technicians shall apply for
17 recertification to the director every two years. The director may extend
18 the expiration date of an emergency medical care technician's certificate
19 for thirty days. The department shall establish a fee for this extension
20 by rule. Emergency medical care technicians shall pass an examination
21 administered by the department as a condition for recertification only if
22 required to do so by the advanced life support base hospital's medical
23 director or the emergency medical care technician's medical director.

24 I. The medical director of the emergency medical services and
25 trauma system is exempt from title 41, chapter 4, articles 5 and 6 and is
26 entitled to receive compensation pursuant to section 38-611, subsection A.

27 J. The standards, criteria and procedures adopted by the director
28 pursuant to subsection A, paragraph 5 of this section shall require that
29 ambulance services:

30 1. Providing interfacility transportation in any certificate of
31 necessity area of this state have one ambulance attendant as defined in
32 section 36-2201, paragraph 6, subdivision (a), (c), (d) or (e) and one
33 ambulance attendant as defined in section 36-2201, paragraph 6,
34 subdivision (a), (b), (c), (d), or (e) staffing an ambulance while
35 transporting a patient. If an ambulance attendant as defined in section
36 36-2201, paragraph 6, subdivision (b) is staffing the ambulance pursuant
37 to this paragraph, that ambulance attendant may exclusively drive the
38 ambulance.

39 2. Serving a rural or wilderness certificate of necessity area with
40 a population of less than ten thousand persons have at least one ambulance
41 attendant as defined in section 36-2201, paragraph 6, subdivision (a),
42 (c), (d) or (e) and one ambulance attendant as defined in section 36-2201,
43 paragraph 6, subdivision (a) or (b) staffing an ambulance while
44 transporting a patient.

45 3. Serving a population of ten thousand persons or more have at
46 least one ambulance attendant as defined in section 36-2201, paragraph 6,
47 subdivision (a) and one ambulance attendant as defined in section 36-2201,

1 paragraph 6, subdivision (a), (c), (d) or (e) staffing an ambulance while
2 transporting a patient.

3 K. If the department determines there is not a qualified
4 administrative medical director, the department shall ensure the provision
5 of administrative medical direction for an emergency medical technician if
6 the emergency medical technician meets all of the following criteria:

7 1. Is employed by a nonprofit or governmental provider employing
8 less than twelve full-time emergency medical technicians.

9 2. Stipulates to the inability to secure a physician who is willing
10 to provide administrative medical direction.

11 3. Stipulates that the provider agency does not provide
12 administrative medical direction for its employees.>>

13 <<Sec. 2. Section 36-2220, Arizona Revised Statutes, is amended to
14 read:

15 36-2220. Records; confidentiality; definition

16 A. Information developed, records kept and data collected by the
17 department or a political subdivision of this state for the purpose of
18 administering or evaluating the Arizona emergency medical services system
19 or for the trauma system are available to the public except:

20 1. Any patient record, including clinical records, prehospital care
21 records, medical reports, laboratory statements and reports, any file,
22 film, record or report or oral statement relating to diagnostic findings,
23 treatment or outcome of patients, whether written or recorded, and any
24 information from which a patient, the patient's family or the patient's
25 health care provider or facility might be identified except records, files
26 and information are available to the patient, the patient's guardian or
27 the patient's agent.

28 2. Information obtained and data collected for purposes of chapter
29 25 or chapter 4, article 5 of this title.

30 B. Unless otherwise provided by law, all medical records developed
31 and kept by a prehospital component of the statewide trauma system and
32 information contained in these records are confidential and may not be
33 released to the public without written authorization by the patient, the
34 patient's guardian or the patient's agent.

35 C. Notwithstanding subsection B of this section, a prehospital
36 incident history report completed and kept by a nonhospital political
37 subdivision of this state is available to the public except for
38 information in that report that is protected from disclosure by the laws
39 of this state or federal law, including confidential patient treatment
40 information.

41 D. Patient records and medical records covered by this section may
42 be obtained pursuant to section 12-2294.01.

43 E. Information, documents and records received by the department or
44 prepared by the department in connection with an investigation that is
45 conducted pursuant to this article and that relates to emergency medical
46 care technicians are confidential and are not subject to public inspection
47 or civil discovery. The results of the investigation and the decision of

1 the department are available to the public after the investigation is
2 completed and the investigation file is closed. [THIS SUBSECTION DOES NOT
3 PREVENT THE DEPARTMENT FROM SUBMITTING INFORMATION IN COMPLIANCE WITH THE
4 EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE INTERSTATE COMPACT AS
5 REQUIRED BY SECTION 36-2259.]

6 F. For the purposes of this section, "prehospital incident history
7 report" means a record of the prehospital response, nature of the incident
8 and transportation of an emergency medical services patient that is
9 documented on a prehospital incident history report.>>

10 <<Sec. 3. Section 36-2245, Arizona Revised Statutes, is amended to
11 read:

12 36-2245. Investigations; complaints; informal interviews;
13 hearings; stipulations; judicial review; civil
14 penalty; confidentiality

15 A. The department may conduct an investigation into the operation
16 of ambulances and ambulance services.

17 B. Proceedings under this section may be initiated by the
18 department.

19 C. If the department receives a written and signed statement of
20 dissatisfaction or dispute of charges or any matter relating to the
21 regulation of ambulance services, the customer is deemed to have filed an
22 informal complaint against the ambulance service. Within fifteen days ~~[of~~
23 ~~receipt of]~~ [AFTER RECEIVING] the complaint, a designated representative
24 of the department shall inform the ambulance service that an informal
25 complaint has been filed, state the nature of the allegations made,
26 specify the purported rule violation and identify specific records
27 relating to the purported rule violation that the ambulance service shall
28 provide to the department. The ambulance service shall comply with the
29 request for records in a timely manner.

30 D. Within forty-five days ~~[of receipt of]~~ [AFTER RECEIVING] the
31 records, the department shall determine ~~[if]~~ [WHETHER] the complaint is
32 nonsubstantive or substantive.

33 E. If the department determines that a complaint filed pursuant to
34 this section is nonsubstantive, ~~[it]~~ [THE DEPARTMENT] shall render a
35 written decision to all parties within five days ~~[of]~~ [AFTER] that
36 determination. The complainant may make a formal complaint to the
37 department if the complainant disagrees with the department's decision.
38 If the nonsubstantive complaint involves rates and charges, a designated
39 representative of the department shall attempt to resolve the dispute by
40 correspondence or telephone with the ambulance service and the customer.

41 F. If the department determines that a complaint filed pursuant to
42 this section is substantive, the complaint becomes a formal complaint.
43 The department shall inform the ambulance service that the initial
44 investigation was substantive in nature and may warrant action pursuant to
45 this article. The department shall inform the ambulance service of the
46 specific rule violation and shall allow the ambulance service thirty days
47 to answer the complaint in writing.

1 G. The department may issue a written request for an informal
2 interview with the ambulance service if the department believes that the
3 evidence indicates that grounds for action exist. The request shall state
4 the reasons for the interview and shall schedule an [INFORMAL] interview
5 at least ten days ~~[from]~~ [AFTER] the date that the department sends the
6 request for an interview.

7 H. If the department determines that evidence warrants action or if
8 the ambulance service refuses to attend the informal interview, the
9 director shall institute formal proceedings and hold a hearing pursuant to
10 title 41, chapter 6, article 10.

11 I. If the department believes that a lesser disciplinary action is
12 appropriate, the department may enter into a stipulated agreement with the
13 ambulance service. This stipulation may include a civil penalty as
14 provided under subsection J of this section.

15 J. In addition to other disciplinary action provided under this
16 section, the director may impose a civil penalty of not more than ~~[three~~
17 ~~hundred fifty dollars]~~ [\$350] for each violation of this chapter that
18 constitutes grounds to suspend or revoke a certificate of necessity. This
19 penalty shall not exceed ~~[fifteen thousand dollars]~~ [\$15,000]. Each day
20 that a violation occurs constitutes a separate offense. The director
21 shall deposit, pursuant to sections 35-146 and 35-147, all monies
22 collected under this subsection in the emergency medical services
23 operating fund established ~~[under]~~ [BY] section 36-2218.

24 K. The director may suspend a certificate of necessity without
25 holding a hearing if the director determines that the certificate holder
26 has failed to pay a civil penalty imposed under this section. The director
27 shall reinstate the certificate of necessity when the certificate holder
28 pays the penalty in full.

29 L. Except as provided in section 41-1092.08, subsection H, a final
30 decision of the department pursuant to this section is subject to judicial
31 review pursuant to title 12, chapter 7, article 6.

32 M. Information, documents and records received by the department or
33 prepared by the department in connection with an investigation that is
34 conducted pursuant to this article and that relates to emergency medical
35 care technicians are confidential and are not subject to public inspection
36 or civil discovery. When the investigation has been completed and the
37 investigation file has been closed, the results of the investigation and
38 the decision of the department shall be available to the public. [THIS
39 SUBSECTION DOES NOT PREVENT THE DEPARTMENT FROM SUBMITTING INFORMATION IN
40 COMPLIANCE WITH THE EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE
41 INTERSTATE COMPACT AS REQUIRED BY SECTION 36-2259.]>>

42 Sec. 4. Title 36, chapter 21.1, Arizona Revised Statutes, is
43 amended by adding article 2.1, to read:

44 ARTICLE 2.1 EMERGENCY MEDICAL SERVICES PERSONNEL
45 LICENSURE INTERSTATE COMPACT
46 36-2259. Emergency medical services licensure interstate
47 compact

1 SECTION 1. PURPOSE

THE PURPOSE OF THIS COMPACT IS TO PROTECT THE PUBLIC THROUGH VERIFICATION OF COMPETENCY AND TO ENSURE ACCOUNTABILITY FOR PATIENT CARE-RELATED ACTIVITIES OF ALL STATES' LICENSED EMERGENCY MEDICAL SERVICES (EMS) PERSONNEL, SUCH AS EMERGENCY MEDICAL TECHNICIANS (EMTs), ADVANCED EMERGENCY MEDICAL TECHNICIANS (AEMTs) AND PARAMEDICS. THIS COMPACT IS INTENDED TO FACILITATE THE DAY-TO-DAY MOVEMENT OF EMS PERSONNEL ACROSS STATE BOUNDARIES IN THE PERFORMANCE OF THEIR EMS DUTIES AS ASSIGNED BY AN APPROPRIATE AUTHORITY AND TO AUTHORIZE STATE EMS OFFICES TO AFFORD IMMEDIATE LEGAL RECOGNITION TO EMS PERSONNEL WHO ARE LICENSED IN A MEMBER STATE. THIS COMPACT RECOGNIZES THAT STATES HAVE A VESTED INTEREST IN PROTECTING THE PUBLIC'S HEALTH AND SAFETY THROUGH THEIR LICENSING AND REGULATION OF EMS PERSONNEL AND THAT SUCH STATE REGULATION SHARED AMONG THE MEMBER STATES WILL BEST PROTECT THE PUBLIC HEALTH AND SAFETY. THIS COMPACT IS DESIGNED TO ACHIEVE THE FOLLOWING PURPOSES AND OBJECTIVES:

16 1. INCREASE PUBLIC ACCESS TO EMS PERSONNEL.

17 2. ENHANCE THE STATES' ABILITY TO PROTECT THE PUBLIC'S HEALTH AND
18 SAFETY, ESPECIALLY PATIENT SAFETY.

19 3. ENCOURAGE THE COOPERATION OF MEMBER STATES IN THE AREAS OF EMS
20 PERSONNEL LICENSURE AND REGULATION.

21 4. SUPPORT THE LICENSING OF MILITARY MEMBERS WHO ARE SEPARATING
22 FROM AN ACTIVE DUTY TOUR AND THE SPOUSES OF THOSE MILITARY MEMBERS.

23 5. FACILITATE THE EXCHANGE OF INFORMATION BETWEEN MEMBER STATES
24 REGARDING EMS PERSONNEL LICENSURE, ADVERSE ACTIONS AND SIGNIFICANT
25 INVESTIGATORY INFORMATION.

26 6. PROMOTE COMPLIANCE WITH THE LAWS GOVERNING EMS PERSONNEL
27 PRACTICE IN EACH MEMBER STATE.

28 7. INVEST ALL MEMBER STATES WITH THE AUTHORITY TO HOLD EMS
29 PERSONNEL ACCOUNTABLE THROUGH THE MUTUAL RECOGNITION OF MEMBER STATE
30 LICENSES.

31 SECTION 2. DEFINITIONS

32 IN THIS COMPACT, UNLESS THE CONTEXT OTHERWISE REQUIRES:

33 1. "ADVANCED EMERGENCY MEDICAL TECHNICIAN" OR "AEMT" MEANS AN
34 INDIVIDUAL WHO IS LICENSED WITH COGNITIVE KNOWLEDGE AND A SCOPE OF
35 PRACTICE THAT CORRESPONDS TO THAT LEVEL IN THE NATIONAL EMS EDUCATION
36 STANDARDS AND NATIONAL EMS SCOPE OF PRACTICE MODEL.

37 2. "ADVERSE ACTION" MEANS:

38 (a) ANY ADMINISTRATIVE, CIVIL, EQUITABLE OR CRIMINAL ACTION ALLOWED
39 BY A STATE'S LAWS THAT MAY BE IMPOSED AGAINST LICENSED EMS PERSONNEL BY A
40 STATE EMS AUTHORITY OR STATE COURT.

41 (b) INCLUDES ACTIONS AGAINST AN INDIVIDUAL'S LICENSE SUCH AS
42 REVOCATION, SUSPENSION, PROBATION, A CONSENT AGREEMENT, MONITORING OR
43 ANOTHER LIMITATION OR ENCUMBRANCE ON THE INDIVIDUAL'S PRACTICE, A LETTER
44 OF REPRIMAND OR ADMONITION, A FINE, A CRIMINAL CONVICTION AND A STATE
45 COURT JUDGMENT ENFORCING ADVERSE ACTIONS BY THE STATE EMS AUTHORITY.

- 1 3. "ALTERNATIVE PROGRAM" MEANS A VOLUNTARY, NONDISCIPLINARY
2 SUBSTANCE ABUSE RECOVERY PROGRAM THAT IS APPROVED BY A STATE EMS
3 AUTHORITY.
- 4 4. "CERTIFICATION" MEANS THE SUCCESSFUL VERIFICATION OF ENTRY-LEVEL
5 COGNITIVE AND PSYCHOMOTOR COMPETENCY USING A RELIABLE, VALIDATED AND
6 LEGALLY DEFENSIBLE EXAMINATION.
- 7 5. "COMMISSION" MEANS THE NATIONAL ADMINISTRATIVE BODY OF WHICH ALL
8 STATES THAT HAVE ENACTED THIS COMPACT ARE MEMBERS.
- 9 6. "EMERGENCY MEDICAL TECHNICIAN" OR "EMT" MEANS AN INDIVIDUAL WHO
10 IS LICENSED WITH COGNITIVE KNOWLEDGE AND A SCOPE OF PRACTICE THAT
11 CORRESPONDS TO THAT LEVEL IN THE NATIONAL EMS EDUCATION STANDARDS AND
12 NATIONAL EMS SCOPE OF PRACTICE MODEL.
- 13 7. "HOME STATE" MEANS A MEMBER STATE WHERE AN INDIVIDUAL IS
14 LICENSED TO PRACTICE EMERGENCY MEDICAL SERVICES.
- 15 8. "LICENSE" MEANS THE AUTHORIZATION BY A STATE FOR AN INDIVIDUAL
16 TO PRACTICE AS AN EMT, AEMT OR PARAMEDIC OR AT A LEVEL IN BETWEEN EMT AND
17 PARAMEDIC.
- 18 9. "MEDICAL DIRECTOR" MEANS A PHYSICIAN WHO IS LICENSED IN A MEMBER
19 STATE AND WHO IS ACCOUNTABLE FOR THE CARE DELIVERED BY EMS PERSONNEL.
- 20 10. "MEMBER STATE" MEANS A STATE THAT HAS ENACTED THIS COMPACT.
- 21 11. "PARAMEDIC" MEANS AN INDIVIDUAL WHO IS LICENSED WITH COGNITIVE
22 KNOWLEDGE AND A SCOPE OF PRACTICE THAT CORRESPONDS TO THAT LEVEL IN THE
23 NATIONAL EMS EDUCATION STANDARDS AND NATIONAL EMS SCOPE OF PRACTICE MODEL.
- 24 12. "PRIVILEGE TO PRACTICE" MEANS AN INDIVIDUAL'S AUTHORITY TO
25 DELIVER EMERGENCY MEDICAL SERVICES IN REMOTE STATES AS AUTHORIZED UNDER
26 THIS COMPACT.
- 27 13. "REMOTE STATE" MEANS A MEMBER STATE IN WHICH AN INDIVIDUAL IS
28 NOT LICENSED.
- 29 14. "RESTRICTED" MEANS THE OUTCOME OF AN ADVERSE ACTION THAT LIMITS
30 A LICENSE OR THE PRIVILEGE TO PRACTICE.
- 31 15. "RULE" MEANS A WRITTEN STATEMENT OF THE COMMISSION THAT IS
32 PROMULGATED PURSUANT TO SECTION 12 OF THIS COMPACT AND THAT:
33 (a) IS OF GENERAL APPLICABILITY.
34 (b) IMPLEMENTS, INTERPRETS OR PRESCRIBES A POLICY OR PROVISION OF
35 THIS COMPACT.
36 (c) IS AN ORGANIZATIONAL, PROCEDURAL OR PRACTICE REQUIREMENT OF THE
37 COMMISSION AND HAS THE FORCE AND EFFECT OF STATUTORY LAW IN A MEMBER
38 STATE.
39 (d) INCLUDES THE AMENDMENT, REPEAL OR SUSPENSION OF AN EXISTING
40 RULE.
- 41 16. "SCOPE OF PRACTICE" MEANS DEFINED PARAMETERS OF VARIOUS DUTIES
42 OR SERVICES THAT MAY BE PROVIDED BY AN INDIVIDUAL WITH SPECIFIC
43 CREDENTIALS AND THAT, WHETHER REGULATED BY RULE, STATUTE OR COURT
44 DECISION, TEND TO REPRESENT THE LIMITS OF SERVICES THE INDIVIDUAL MAY
45 PERFORM.
- 46 17. "SIGNIFICANT INVESTIGATORY INFORMATION" MEANS EITHER:

1 (a) INVESTIGATIVE INFORMATION THAT A STATE EMS AUTHORITY, AFTER A
2 PRELIMINARY INQUIRY THAT INCLUDES NOTIFICATION AND AN OPPORTUNITY TO
3 RESPOND IF REQUIRED BY STATE LAW, HAS REASON TO BELIEVE, IF PROVED TRUE,
4 WOULD RESULT IN THE IMPOSITION OF AN ADVERSE ACTION ON A LICENSE OR
5 PRIVILEGE TO PRACTICE.

6 (b) INVESTIGATIVE INFORMATION THAT INDICATES THAT AN INDIVIDUAL
7 REPRESENTS AN IMMEDIATE THREAT TO PUBLIC HEALTH AND SAFETY REGARDLESS OF
8 WHETHER THE INDIVIDUAL HAS BEEN NOTIFIED AND HAD AN OPPORTUNITY TO
9 RESPOND.

10 18. "STATE" MEANS ANY STATE, COMMONWEALTH, DISTRICT OR TERRITORY OF
11 THE UNITED STATES.

12 19. "STATE EMS AUTHORITY" MEANS THE BOARD, OFFICE OR OTHER AGENCY
13 WITH THE LEGISLATIVE MANDATE TO LICENSE EMS PERSONNEL.

14 SECTION 3. HOME STATE LICENSURE

15 A. ANY MEMBER STATE IN WHICH AN INDIVIDUAL HOLDS A CURRENT LICENSE
16 IS DEEMED A HOME STATE FOR THE PURPOSES OF THIS COMPACT.

17 B. ANY MEMBER STATE MAY REQUIRE AN INDIVIDUAL TO OBTAIN AND RETAIN
18 A LICENSE TO BE AUTHORIZED TO PRACTICE IN THE MEMBER STATE UNDER
19 CIRCUMSTANCES NOT AUTHORIZED BY THE PRIVILEGE TO PRACTICE UNDER THE TERMS
20 OF THIS COMPACT.

21 C. A HOME STATE'S ISSUANCE OF A LICENSE AUTHORIZES AN INDIVIDUAL TO
22 PRACTICE IN A REMOTE STATE UNDER THE PRIVILEGE TO PRACTICE ONLY IF THE
23 HOME STATE MEETS ALL OF THE FOLLOWING:

24 1. CURRENTLY REQUIRES THE USE OF THE NATIONAL REGISTRY OF EMERGENCY
25 MEDICAL TECHNICIANS (NREMT) EXAMINATION AS A CONDITION OF ISSUING INITIAL
26 LICENSES AT THE EMT AND PARAMEDIC LEVELS.

27 2. HAS A MECHANISM IN PLACE FOR RECEIVING AND INVESTIGATING
28 COMPLAINTS ABOUT INDIVIDUALS.

29 3. NOTIFIES THE COMMISSION, IN COMPLIANCE WITH THE TERMS PRESCRIBED
30 IN THIS COMPACT, OF ANY ADVERSE ACTION OR SIGNIFICANT INVESTIGATORY
31 INFORMATION REGARDING AN INDIVIDUAL.

32 4. NOT LATER THAN FIVE YEARS AFTER ACTIVATION OF THIS COMPACT,
33 REQUIRES A CRIMINAL BACKGROUND CHECK OF ALL APPLICANTS FOR INITIAL
34 LICENSURE, INCLUDING THE USE OF THE RESULTS OF FINGERPRINT OR OTHER
35 BIOMETRIC DATA CHECKS COMPLIANT WITH THE REQUIREMENTS OF THE FEDERAL
36 BUREAU OF INVESTIGATION, WITH THE EXCEPTION OF FEDERAL EMPLOYEES WHO HAVE
37 SUITABILITY DETERMINATION IN ACCORDANCE WITH 5 CODE OF FEDERAL REGULATIONS
38 SECTION 731.202 AND WHO SUBMIT DOCUMENTATION OF SUCH AS PROMULGATED IN THE
39 RULES OF THE COMMISSION.

40 5. COMPLIES WITH THE RULES OF THE COMMISSION.

41 SECTION 4. COMPACT PRIVILEGE TO PRACTICE

42 A. MEMBER STATES SHALL RECOGNIZE THE PRIVILEGE TO PRACTICE OF AN
43 INDIVIDUAL WHO IS LICENSED IN ANOTHER MEMBER STATE THAT IS IN CONFORMANCE
44 WITH SECTION 3 OF THIS COMPACT.

45 B. TO EXERCISE THE PRIVILEGE TO PRACTICE UNDER THE TERMS AND
46 PROVISIONS OF THIS COMPACT, AN INDIVIDUAL MUST MEET ALL OF THE FOLLOWING:

47 1. BE AT LEAST EIGHTEEN YEARS OF AGE.

1 2. POSSESS A CURRENT UNRESTRICTED LICENSE IN A MEMBER STATE AS AN
2 EMT, AEMT, PARAMEDIC OR STATE RECOGNIZED AND LICENSED LEVEL WITH A SCOPE
3 OF PRACTICE AND AUTHORITY BETWEEN EMT AND PARAMEDIC.

4 3. PRACTICE UNDER THE SUPERVISION OF A MEDICAL DIRECTOR.

5 C. AN INDIVIDUAL PROVIDING PATIENT CARE IN A REMOTE STATE UNDER THE
6 PRIVILEGE TO PRACTICE SHALL FUNCTION WITHIN THE SCOPE OF PRACTICE
7 AUTHORIZED BY THE HOME STATE UNLESS AND UNTIL MODIFIED BY AN APPROPRIATE
8 AUTHORITY IN THE REMOTE STATE AS MAY BE DEFINED IN THE RULES OF THE
9 COMMISSION.

10 D. EXCEPT AS PROVIDED IN SUBSECTION C OF THIS SECTION, AN
11 INDIVIDUAL PRACTICING IN A REMOTE STATE IS SUBJECT TO THE REMOTE STATE'S
12 AUTHORITY AND LAWS. A REMOTE STATE, IN ACCORDANCE WITH DUE PROCESS AND
13 THAT STATE'S LAWS, MAY RESTRICT, SUSPEND OR REVOKE AN INDIVIDUAL'S
14 PRIVILEGE TO PRACTICE IN THE REMOTE STATE AND MAY TAKE ANY OTHER NECESSARY
15 ACTIONS TO PROTECT THE HEALTH AND SAFETY OF ITS CITIZENS. IF A REMOTE
16 STATE TAKES ACTION, IT SHALL PROMPTLY NOTIFY THE HOME STATE AND THE
17 COMMISSION.

18 E. IF AN INDIVIDUAL'S LICENSE IN ANY HOME STATE IS RESTRICTED OR
19 SUSPENDED, THE INDIVIDUAL IS NOT ELIGIBLE TO PRACTICE IN A REMOTE STATE
20 UNDER THE PRIVILEGE TO PRACTICE UNTIL THE INDIVIDUAL'S HOME STATE LICENSE
21 IS RESTORED.

22 F. IF AN INDIVIDUAL'S PRIVILEGE TO PRACTICE IN ANY REMOTE STATE IS
23 RESTRICTED, SUSPENDED OR REVOKED, THE INDIVIDUAL IS NOT ELIGIBLE TO
24 PRACTICE IN ANY REMOTE STATE UNTIL THE INDIVIDUAL'S PRIVILEGE TO PRACTICE
25 IS RESTORED.

26 SECTION 5. CONDITIONS OF PRACTICE IN A REMOTE STATE

27 AN INDIVIDUAL MAY PRACTICE IN A REMOTE STATE UNDER A PRIVILEGE TO
28 PRACTICE ONLY IN THE PERFORMANCE OF THE INDIVIDUAL'S EMS DUTIES AS
29 ASSIGNED BY AN APPROPRIATE AUTHORITY, AS DEFINED IN THE RULES OF THE
30 COMMISSION, AND UNDER THE FOLLOWING CIRCUMSTANCES:

31 1. THE INDIVIDUAL ORIGINATES A PATIENT TRANSPORT IN A HOME STATE
32 AND TRANSPORTS THE PATIENT TO A REMOTE STATE.

33 2. THE INDIVIDUAL ORIGINATES IN THE HOME STATE AND ENTERS A REMOTE
34 STATE TO PICK UP A PATIENT AND PROVIDE CARE AND TRANSPORT OF THE PATIENT
35 TO THE HOME STATE.

36 3. THE INDIVIDUAL ENTERS A REMOTE STATE TO PROVIDE PATIENT CARE OR
37 TRANSPORT, OR BOTH, WITHIN THAT REMOTE STATE.

38 4. THE INDIVIDUAL ENTERS A REMOTE STATE TO PICK UP A PATIENT AND
39 PROVIDE CARE AND TRANSPORT TO A THIRD MEMBER STATE.

40 5. OTHER CONDITIONS AS DETERMINED BY RULES PROMULGATED BY THE
41 COMMISSION.

42 SECTION 6. RELATIONSHIP TO EMERGENCY
43 MANAGEMENT ASSISTANCE COMPACT

44 ON THE DECLARATION BY A MEMBER STATE'S GOVERNOR OF A STATE OF
45 EMERGENCY OR DISASTER THAT ACTIVATES THE EMERGENCY MANAGEMENT ASSISTANCE
46 COMPACT (EMAC), ALL RELEVANT TERMS AND PROVISIONS OF EMAC APPLY AND, TO
47 THE EXTENT ANY TERMS OR PROVISIONS OF THIS COMPACT CONFLICT WITH EMAC, THE

1 TERMS OF EMAC SHALL PREVAIL WITH RESPECT TO ANY INDIVIDUAL PRACTICING IN
2 THE REMOTE STATE IN RESPONSE TO THE DECLARATION.

3 SECTION 7. VETERANS AND MILITARY SERVICE MEMBERS
4 SEPARATING FROM ACTIVE DUTY AND THEIR SPOUSES

5 A. MEMBER STATES SHALL CONSIDER A VETERAN, ACTIVE MILITARY SERVICE
6 MEMBER AND MEMBER OF THE NATIONAL GUARD AND RESERVES SEPARATING FROM AN
7 ACTIVE DUTY TOUR, AND THE SPOUSE OF ANY OF THESE, WHO HOLDS A CURRENT
8 VALID AND UNRESTRICTED NREMT CERTIFICATION AT OR ABOVE THE LEVEL OF THE
9 STATE LICENSE BEING SOUGHT AS SATISFYING THE MINIMUM TRAINING AND
10 EXAMINATION REQUIREMENTS FOR SUCH LICENSURE.

11 B. MEMBER STATES SHALL EXPEDITE THE PROCESSING OF LICENSURE
12 APPLICATIONS SUBMITTED BY VETERANS, ACTIVE MILITARY SERVICE MEMBERS AND
13 MEMBERS OF THE NATIONAL GUARD AND RESERVES SEPARATING FROM AN ACTIVE DUTY
14 TOUR, AND THEIR SPOUSES.

15 C. ALL INDIVIDUALS FUNCTIONING WITH A PRIVILEGE TO PRACTICE UNDER
16 THIS SECTION REMAIN SUBJECT TO THE ADVERSE ACTIONS PROVISIONS OF SECTION 8
17 OF THIS COMPACT.

18 SECTION 8. ADVERSE ACTIONS

19 A. A HOME STATE HAS EXCLUSIVE POWER TO IMPOSE ADVERSE ACTION
20 AGAINST AN INDIVIDUAL'S LICENSE ISSUED BY THE HOME STATE.

21 B. IF AN INDIVIDUAL'S LICENSE IN ANY HOME STATE IS RESTRICTED OR
22 SUSPENDED, THE INDIVIDUAL IS NOT ELIGIBLE TO PRACTICE IN A REMOTE STATE
23 UNDER THE PRIVILEGE TO PRACTICE UNTIL THE INDIVIDUAL'S HOME STATE LICENSE
24 IS RESTORED, AND THE FOLLOWING APPLY:

25 1. ALL HOME STATE ADVERSE ACTION ORDERS SHALL INCLUDE A STATEMENT
26 THAT THE INDIVIDUAL'S PRIVILEGE TO PRACTICE IS INACTIVE. THE ORDER MAY
27 ALLOW THE INDIVIDUAL TO PRACTICE IN REMOTE STATES WITH PRIOR WRITTEN
28 AUTHORIZATION FROM BOTH THE HOME STATE EMS AUTHORITY AND THE REMOTE STATE
29 EMS AUTHORITY.

30 2. AN INDIVIDUAL WHO IS CURRENTLY SUBJECT TO ADVERSE ACTION IN THE
31 HOME STATE SHALL NOT PRACTICE IN ANY REMOTE STATE WITHOUT PRIOR WRITTEN
32 AUTHORIZATION FROM BOTH THE HOME STATE EMS AUTHORITY AND THE REMOTE STATE
33 EMS AUTHORITY.

34 C. A MEMBER STATE SHALL REPORT ADVERSE ACTIONS AND ANY OCCURRENCES
35 THAT THE INDIVIDUAL'S PRIVILEGE TO PRACTICE IS RESTRICTED, SUSPENDED OR
36 REVOKED TO THE COMMISSION IN ACCORDANCE WITH THE RULES OF THE COMMISSION.

37 D. A REMOTE STATE MAY TAKE ADVERSE ACTION ON AN INDIVIDUAL'S
38 PRIVILEGE TO PRACTICE WITHIN THAT STATE.

39 E. ANY MEMBER STATE MAY TAKE ADVERSE ACTION AGAINST AN INDIVIDUAL'S
40 PRIVILEGE TO PRACTICE IN THAT STATE BASED ON THE FACTUAL FINDINGS OF
41 ANOTHER MEMBER STATE SO LONG AS EACH STATE FOLLOWS ITS OWN PROCEDURES FOR
42 IMPOSING SUCH ADVERSE ACTION.

43 F. A HOME STATE'S EMS AUTHORITY SHALL INVESTIGATE AND TAKE
44 APPROPRIATE ACTION WITH RESPECT TO REPORTED CONDUCT IN A REMOTE STATE AS
45 IT WOULD IF SUCH CONDUCT HAD OCCURRED WITHIN THE HOME STATE. IN SUCH
46 CASES, THE HOME STATE'S LAW SHALL CONTROL IN DETERMINING THE APPROPRIATE
47 ADVERSE ACTION.

1 G. THIS COMPACT DOES NOT OVERRIDE A MEMBER STATE'S DECISION THAT
2 PARTICIPATION IN AN ALTERNATIVE PROGRAM MAY BE USED IN LIEU OF ADVERSE
3 ACTION AND THAT SUCH PARTICIPATION SHALL REMAIN NONPUBLIC IF REQUIRED BY
4 THE MEMBER STATE'S LAWS. MEMBER STATES SHALL REQUIRE INDIVIDUALS WHO
5 ENTER ANY ALTERNATIVE PROGRAMS TO AGREE NOT TO PRACTICE IN ANY OTHER
6 MEMBER STATE DURING THE TERM OF THE ALTERNATIVE PROGRAM WITHOUT PRIOR
7 AUTHORIZATION FROM THE OTHER MEMBER STATE.

8 SECTION 9. ADDITIONAL POWERS INVESTED IN
9 A MEMBER STATE'S EMS AUTHORITY

10 A MEMBER STATE'S EMS AUTHORITY, IN ADDITION TO ANY OTHER POWERS
11 GRANTED UNDER STATE LAW, IS AUTHORIZED UNDER THIS COMPACT TO:

12 1. ISSUE SUBPOENAS FOR BOTH HEARINGS AND INVESTIGATIONS THAT
13 REQUIRE THE ATTENDANCE AND TESTIMONY OF WITNESSES AND THE PRODUCTION OF
14 EVIDENCE. SUBPOENAS ISSUED BY A MEMBER STATE'S EMS AUTHORITY FOR THE
15 ATTENDANCE AND TESTIMONY OF WITNESSES OR THE PRODUCTION OF EVIDENCE FROM
16 ANOTHER MEMBER STATE, OR BOTH, SHALL BE ENFORCED IN THE REMOTE STATE BY
17 ANY COURT OF COMPETENT JURISDICTION, ACCORDING TO THAT COURT'S PRACTICE
18 AND PROCEDURE IN CONSIDERING SUBPOENAS ISSUED IN ITS OWN PROCEEDINGS. THE
19 ISSUING STATE EMS AUTHORITY SHALL PAY ANY WITNESS FEES, TRAVEL EXPENSES,
20 MILEAGE AND OTHER FEES REQUIRED BY THE SERVICE STATUTES OF THE STATE WHERE
21 THE WITNESSES OR EVIDENCE, OR BOTH, ARE LOCATED.

22 2. ISSUE CEASE AND DESIST ORDERS TO RESTRICT, SUSPEND OR REVOKE AN
23 INDIVIDUAL'S PRIVILEGE TO PRACTICE IN THE MEMBER STATE.

24 SECTION 10. ESTABLISHMENT OF THE INTERSTATE COMMISSION
25 FOR EMS PERSONNEL PRACTICE

26 A. THE COMPACT STATES HEREBY CREATE AND ESTABLISH A JOINT PUBLIC
27 AGENCY KNOWN AS THE INTERSTATE COMMISSION FOR EMS PERSONNEL PRACTICE. THE
28 FOLLOWING APPLY:

29 1. THE COMMISSION IS A BODY POLITIC AND AN INSTRUMENTALITY OF THE
30 COMPACT STATES.

31 2. VENUE IS PROPER AND JUDICIAL PROCEEDINGS BY OR AGAINST THE
32 COMMISSION SHALL BE BROUGHT SOLELY AND EXCLUSIVELY IN A COURT OF COMPETENT
33 JURISDICTION WHERE THE PRINCIPAL OFFICE OF THE COMMISSION IS LOCATED. THE
34 COMMISSION MAY WAIVE VENUE AND JURISDICTIONAL DEFENSES TO THE EXTENT IT
35 ADOPTS OR CONSENTS TO PARTICIPATE IN ALTERNATIVE DISPUTE RESOLUTION
36 PROCEEDINGS.

37 3. THIS COMPACT IS NOT A WAIVER OF SOVEREIGN IMMUNITY.

38 B. MEMBERSHIP, VOTING AND MEETINGS ARE AS FOLLOWS:

39 1. EACH MEMBER STATE SHALL HAVE AND BE LIMITED TO ONE DELEGATE. THE
40 RESPONSIBLE OFFICIAL OF THE STATE EMS AUTHORITY OR THE STATE EMS
41 AUTHORITY'S DESIGNEE SHALL BE THE DELEGATE TO THIS COMPACT FOR EACH MEMBER
42 STATE. ANY DELEGATE MAY BE REMOVED OR SUSPENDED FROM OFFICE AS PROVIDED
43 BY THE LAW OF THE STATE FROM WHICH THE DELEGATE IS APPOINTED. ANY VACANCY
44 OCCURRING IN THE COMMISSION SHALL BE FILLED IN ACCORDANCE WITH THE LAWS OF
45 THE MEMBER STATE IN WHICH THE VACANCY EXISTS. IN THE EVENT THAT MORE THAN
46 ONE BOARD, OFFICE OR OTHER AGENCY WITH THE LEGISLATIVE MANDATE TO LICENSE
47 EMS PERSONNEL AT AND ABOVE THE LEVEL OF EMT EXISTS, THE GOVERNOR OF THAT

1 STATE WILL DETERMINE WHICH ENTITY WILL BE RESPONSIBLE FOR ASSIGNING THE
2 DELEGATE.

3 2. EACH DELEGATE SHALL BE ENTITLED TO ONE VOTE WITH REGARD TO THE
4 PROMULGATION OF RULES AND CREATION OF BYLAWS AND SHALL OTHERWISE HAVE AN
5 OPPORTUNITY TO PARTICIPATE IN THE BUSINESS AND AFFAIRS OF THE COMMISSION.
6 A DELEGATE SHALL VOTE IN PERSON OR BY SUCH OTHER MEANS AS PROVIDED IN THE
7 BYLAWS. THE BYLAWS MAY PROVIDE FOR DELEGATES' PARTICIPATION IN MEETINGS
8 BY TELEPHONE OR OTHER MEANS OF COMMUNICATION.

9 3. THE COMMISSION SHALL MEET AT LEAST ONCE DURING EACH CALENDAR
10 YEAR. ADDITIONAL MEETINGS SHALL BE HELD AS SET FORTH IN THE BYLAWS.

11 4. ALL MEETINGS SHALL BE OPEN TO THE PUBLIC, AND PUBLIC NOTICE OF
12 MEETINGS SHALL BE GIVEN IN THE SAME MANNER AS REQUIRED UNDER THE
13 RULEMAKING PROVISIONS IN SECTION 12 OF THIS COMPACT.

14 5. THE COMMISSION MAY CONVELE IN A CLOSED, NONPUBLIC MEETING IF THE
15 COMMISSION MUST DISCUSS ANY OF THE FOLLOWING:

16 (a) NONCOMPLIANCE OF A MEMBER STATE WITH ITS OBLIGATIONS UNDER THE
17 COMPACT.

18 (b) THE EMPLOYMENT, COMPENSATION, DISCIPLINE OR OTHER PERSONNEL
19 MATTERS, PRACTICES OR PROCEDURES RELATED TO SPECIFIC EMPLOYEES OR OTHER
20 MATTERS RELATED TO THE COMMISSION'S INTERNAL PERSONNEL PRACTICES AND
21 PROCEDURES.

22 (c) THE CURRENT, THREATENED OR REASONABLY ANTICIPATED LITIGATION.

23 (d) THE NEGOTIATION OF CONTRACTS FOR THE PURCHASE OR SALE OF GOODS,
24 SERVICES OR REAL ESTATE.

25 (e) THE ACCUSATION OF ANY PERSON OF A CRIME OR THE FORMAL CENSURE
26 OF ANY PERSON.

27 (f) THE DISCLOSURE OF TRADE SECRETS OR COMMERCIAL OR FINANCIAL
28 INFORMATION THAT IS PRIVILEGED OR CONFIDENTIAL.

29 (g) THE DISCLOSURE OF INFORMATION OF A PERSONAL NATURE WHERE
30 DISCLOSURE WOULD CONSTITUTE A CLEARLY UNWARRANTED INVASION OF PERSONAL
31 PRIVACY.

32 (h) THE DISCLOSURE OF INVESTIGATORY RECORDS COMPILED FOR LAW
33 ENFORCEMENT PURPOSES.

34 (i) THE DISCLOSURE OF INFORMATION RELATED TO ANY INVESTIGATORY
35 REPORTS PREPARED BY OR ON BEHALF OF OR FOR USE OF THE COMMISSION OR
36 ANOTHER COMMITTEE CHARGED WITH RESPONSIBILITY OF INVESTIGATION OR
37 DETERMINATION OF COMPLIANCE ISSUES PURSUANT TO THIS COMPACT.

38 (j) ANY MATTER SPECIFICALLY EXEMPTED FROM DISCLOSURE BY FEDERAL OR
39 MEMBER STATE STATUTE.

40 6. IF A MEETING, OR PORTION OF A MEETING, IS CLOSED PURSUANT TO
41 THIS SUBSECTION, THE COMMISSION'S LEGAL COUNSEL OR DESIGNEE SHALL CERTIFY
42 THAT THE MEETING MAY BE CLOSED AND SHALL REFERENCE EACH RELEVANT EXEMPTING
43 PROVISION. THE COMMISSION SHALL KEEP MINUTES THAT FULLY AND CLEARLY
44 DESCRIBE ALL MATTERS DISCUSSED IN THE CLOSED MEETING AND SHALL PROVIDE A
45 FULL AND ACCURATE SUMMARY OF ACTIONS TAKEN, AND THE REASONS THEREFORE,
46 INCLUDING A DESCRIPTION OF THE VIEWS EXPRESSED. ALL DOCUMENTS CONSIDERED
47 IN CONNECTION WITH AN ACTION SHALL BE IDENTIFIED IN SUCH MINUTES. ALL

1 MINUTES AND DOCUMENTS OF A CLOSED MEETING SHALL REMAIN UNDER SEAL, SUBJECT
2 TO RELEASE BY A MAJORITY VOTE OF THE COMMISSION OR AN ORDER OF A COURT OF
3 COMPETENT JURISDICTION.

4 C. THE COMMISSION, BY A MAJORITY VOTE OF THE DELEGATES, SHALL
5 PRESCRIBE BYLAWS OR RULES, OR BOTH, TO GOVERN ITS CONDUCT AS MAY BE
6 NECESSARY OR APPROPRIATE TO CARRY OUT THE PURPOSES AND EXERCISE THE POWERS
7 OF THIS COMPACT, INCLUDING:

8 1. ESTABLISHING THE FISCAL YEAR OF THE COMMISSION.

9 2. PROVIDING REASONABLE STANDARDS AND PROCEDURES:

10 (a) FOR THE ESTABLISHMENT AND MEETINGS OF OTHER COMMITTEES.

11 (b) GOVERNING ANY GENERAL OR SPECIFIC DELEGATION OF ANY AUTHORITY
12 OR FUNCTION OF THE COMMISSION.

13 3. PROVIDING REASONABLE PROCEDURES FOR CALLING AND CONDUCTING
14 MEETINGS OF THE COMMISSION, ENSURING REASONABLE ADVANCE NOTICE OF ALL
15 MEETINGS AND PROVIDING AN OPPORTUNITY FOR ATTENDANCE OF SUCH MEETINGS BY
16 INTERESTED PARTIES, WITH ENUMERATED EXCEPTIONS DESIGNED TO PROTECT THE
17 PUBLIC'S INTEREST, THE PRIVACY OF INDIVIDUALS AND PROPRIETARY INFORMATION,
18 INCLUDING TRADE SECRETS. THE COMMISSION MAY MEET IN CLOSED SESSION ONLY
19 AFTER A MAJORITY OF THE MEMBERSHIP VOTES TO CLOSE A MEETING IN WHOLE OR IN
20 PART. AS SOON AS PRACTICABLE, THE COMMISSION SHALL MAKE PUBLIC A COPY OF
21 THE VOTE TO CLOSE THE MEETING REVEALING THE VOTE OF EACH MEMBER WITH NO
22 PROXY VOTES ALLOWED.

23 4. ESTABLISHING THE TITLES, DUTIES AND AUTHORITY AND REASONABLE
24 PROCEDURES FOR ELECTING THE OFFICERS OF THE COMMISSION.

25 5. PROVIDING REASONABLE STANDARDS AND PROCEDURES FOR ESTABLISHING
26 THE PERSONNEL POLICIES AND PROGRAMS OF THE COMMISSION. NOTWITHSTANDING ANY
27 CIVIL SERVICE OR OTHER SIMILAR LAWS OF ANY MEMBER STATE, THE BYLAWS SHALL
28 EXCLUSIVELY GOVERN THE PERSONNEL POLICIES AND PROGRAMS OF THE COMMISSION.

29 6. PROMULGATING A CODE OF ETHICS TO ADDRESS PERMISSIBLE AND
30 PROHIBITED ACTIVITIES OF COMMISSION MEMBERS AND EMPLOYEES.

31 7. PROVIDING A MECHANISM FOR WINDING UP THE OPERATIONS OF THE
32 COMMISSION AND THE EQUITABLE DISPOSITION OF ANY SURPLUS MONIES THAT MAY
33 EXIST AFTER THE TERMINATION OF THIS COMPACT AFTER THE PAYMENT OR RESERVING
34 OF ALL OF THE COMMISSION'S DEBTS OR OBLIGATIONS, OR BOTH.

35 8. PUBLISHING THE COMMISSION'S BYLAWS AND FILING A COPY THEREOF,
36 AND A COPY OF ANY AMENDMENT THERETO, WITH THE APPROPRIATE AGENCY OR
37 OFFICER IN EACH MEMBER STATE, IF ANY.

38 9. MAINTAINING THE COMMISSION'S FINANCIAL RECORDS IN ACCORDANCE
39 WITH THE BYLAWS.

40 10. MEETING AND TAKING SUCH ACTIONS AS ARE CONSISTENT WITH THE
41 PROVISIONS OF THIS COMPACT AND THE BYLAWS.

42 D. THE COMMISSION SHALL HAVE THE FOLLOWING POWERS:

43 1. TO PROMULGATE UNIFORM RULES TO FACILITATE AND COORDINATE
44 IMPLEMENTATION AND ADMINISTRATION OF THIS COMPACT. THE RULES SHALL HAVE
45 THE FORCE AND EFFECT OF LAW AND SHALL BE BINDING IN ALL MEMBER STATES.

46 2. TO BRING AND PROSECUTE LEGAL PROCEEDINGS OR ACTIONS IN THE NAME
47 OF THE COMMISSION, PROVIDED THAT THE STANDING OF ANY STATE EMS AUTHORITY

1 OR OTHER REGULATORY BODY RESPONSIBLE FOR EMS PERSONNEL LICENSURE TO SUE OR
2 BE SUED UNDER APPLICABLE LAW SHALL NOT BE AFFECTED.

3 3. TO PURCHASE AND MAINTAIN INSURANCE AND BONDS.

4 4. TO BORROW, ACCEPT OR CONTRACT FOR SERVICES OF PERSONNEL,
5 INCLUDING EMPLOYEES OF A MEMBER STATE.

6 5. TO HIRE EMPLOYEES, ELECT OR APPOINT OFFICERS, FIX COMPENSATION,
7 DEFINE DUTIES, GRANT SUCH INDIVIDUALS APPROPRIATE AUTHORITY TO CARRY OUT
8 THE PURPOSES OF THIS COMPACT, AND TO ESTABLISH THE COMMISSION'S PERSONNEL
9 POLICIES AND PROGRAMS RELATING TO CONFLICTS OF INTEREST, QUALIFICATIONS OF
10 PERSONNEL AND OTHER RELATED PERSONNEL MATTERS.

11 6. TO ACCEPT ANY AND ALL APPROPRIATE DONATIONS AND GRANTS OF
12 MONIES, EQUIPMENT, SUPPLIES, MATERIALS AND SERVICES, AND TO RECEIVE, USE
13 AND DISPOSE OF THE SAME, PROVIDED THAT AT ALL TIMES THE COMMISSION SHALL
14 STRIVE TO AVOID ANY APPEARANCE OF IMPROPRIETY AND CONFLICT OF INTEREST.

15 7. TO LEASE, PURCHASE, ACCEPT APPROPRIATE GIFTS OR DONATIONS OF, OR
16 OTHERWISE TO OWN, HOLD, IMPROVE OR USE, ANY PROPERTY, REAL, PERSONAL OR
17 MIXED, PROVIDED THAT AT ALL TIMES THE COMMISSION SHALL STRIVE TO AVOID ANY
18 APPEARANCE OF IMPROPRIETY.

19 8. TO SELL, CONVEY, MORTGAGE, PLEDGE, LEASE, EXCHANGE, ABANDON OR
20 OTHERWISE DISPOSE OF ANY PROPERTY, REAL, PERSONAL OR MIXED.

21 9. TO ESTABLISH A BUDGET AND MAKE EXPENDITURES.

22 10. TO BORROW MONIES.

23 11. TO APPOINT COMMITTEES, INCLUDING ADVISORY COMMITTEES COMPOSED
24 OF MEMBERS, STATE REGULATORS, STATE LEGISLATORS OR THEIR REPRESENTATIVES,
25 AND CONSUMER REPRESENTATIVES, AND SUCH OTHER INTERESTED PERSONS AS MAY BE
26 DESIGNATED IN THIS COMPACT AND THE BYLAWS.

27 12. TO PROVIDE AND RECEIVE INFORMATION FROM, AND TO COOPERATE WITH,
28 LAW ENFORCEMENT AGENCIES.

29 13. TO ADOPT AND USE AN OFFICIAL SEAL.

30 14. TO PERFORM SUCH OTHER FUNCTIONS AS MAY BE NECESSARY OR
31 APPROPRIATE TO ACHIEVE THE PURPOSES OF THIS COMPACT CONSISTENT WITH THE
32 STATE REGULATION OF EMS PERSONNEL LICENSURE AND PRACTICE.

33 E. FINANCING OF THE COMMISSION IS AS FOLLOWS:

34 1. THE COMMISSION SHALL PAY, OR PROVIDE FOR THE PAYMENT OF, THE
35 REASONABLE EXPENSES OF ITS ESTABLISHMENT, ORGANIZATION AND ONGOING
36 ACTIVITIES.

37 2. THE COMMISSION MAY ACCEPT ANY AND ALL APPROPRIATE REVENUE
38 SOURCES, DONATIONS AND GRANTS OF MONIES, EQUIPMENT, SUPPLIES, MATERIALS
39 AND SERVICES.

40 3. THE COMMISSION MAY LEVY ON AND COLLECT AN ANNUAL ASSESSMENT FROM
41 EACH MEMBER STATE OR IMPOSE FEES ON OTHER PARTIES TO COVER THE COST OF THE
42 OPERATIONS AND ACTIVITIES OF THE COMMISSION AND ITS STAFF, WHICH MUST BE
43 IN A TOTAL AMOUNT SUFFICIENT TO COVER ITS ANNUAL BUDGET AS APPROVED EACH
44 YEAR FOR WHICH REVENUE IS NOT PROVIDED BY OTHER SOURCES. THE AGGREGATE
45 ANNUAL ASSESSMENT AMOUNT SHALL BE ALLOCATED BASED ON A FORMULA TO BE
46 DETERMINED BY THE COMMISSION, WHICH SHALL PROMULGATE A RULE BINDING ON ALL
47 MEMBER STATES.

1 4. THE COMMISSION SHALL NOT INCUR OBLIGATIONS OF ANY KIND BEFORE
2 SECURING THE MONIES ADEQUATE TO MEET THE OBLIGATIONS. THE COMMISSION
3 SHALL NOT PLEDGE THE CREDIT OF ANY MEMBER STATE, EXCEPT BY AND WITH THE
4 AUTHORITY OF THE MEMBER STATE.

5 5. THE COMMISSION SHALL KEEP ACCURATE ACCOUNTS OF ALL RECEIPTS AND
6 DISBURSEMENTS. THE RECEIPTS AND DISBURSEMENTS OF THE COMMISSION ARE
7 SUBJECT TO THE AUDIT AND ACCOUNTING PROCEDURES ESTABLISHED UNDER ITS
8 BYLAWS. HOWEVER, ALL RECEIPTS AND DISBURSEMENTS OF MONIES HANDLED BY THE
9 COMMISSION SHALL BE AUDITED YEARLY BY A CERTIFIED OR LICENSED PUBLIC
10 ACCOUNTANT, AND THE REPORT OF THE AUDIT SHALL BE INCLUDED IN AND BECOME
11 PART OF THE ANNUAL REPORT OF THE COMMISSION.

12 F. QUALIFIED IMMUNITY, DEFENSE AND INDEMNIFICATION ARE AS FOLLOWS:

13 1. THE MEMBERS, OFFICERS, EXECUTIVE DIRECTOR, EMPLOYEES AND
14 REPRESENTATIVES OF THE COMMISSION ARE IMMUNE FROM SUIT AND LIABILITY,
15 EITHER PERSONALLY OR IN THEIR OFFICIAL CAPACITY, FOR ANY CLAIM FOR DAMAGE
16 TO OR LOSS OF PROPERTY OR PERSONAL INJURY OR OTHER CIVIL LIABILITY CAUSED
17 BY OR ARISING OUT OF ANY ACTUAL OR ALLEGED ACT, ERROR OR OMISSION THAT
18 OCCURRED, OR THAT THE PERSON AGAINST WHOM THE CLAIM IS MADE HAD A
19 REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE SCOPE OF COMMISSION
20 EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT THIS PARAGRAPH DOES
21 NOT PROTECT ANY SUCH PERSON FROM SUIT OR LIABILITY, OR BOTH, FOR ANY
22 DAMAGE, LOSS, INJURY OR LIABILITY CAUSED BY THE INTENTIONAL OR WILFUL OR
23 WANTON MISCONDUCT OF THAT PERSON.

24 2. THE COMMISSION SHALL DEFEND ANY MEMBER, OFFICER, EXECUTIVE
25 DIRECTOR, EMPLOYEE OR REPRESENTATIVE OF THE COMMISSION IN ANY CIVIL ACTION
26 SEEKING TO IMPOSE LIABILITY ARISING OUT OF ANY ACTUAL OR ALLEGED ACT,
27 ERROR OR OMISSION THAT OCCURRED WITHIN THE SCOPE OF COMMISSION EMPLOYMENT,
28 DUTIES OR RESPONSIBILITIES, OR THAT THE PERSON AGAINST WHOM THE CLAIM IS
29 MADE HAD A REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE SCOPE OF
30 COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT THIS
31 PARAGRAPH DOES NOT PROHIBIT THAT PERSON FROM RETAINING THE PERSON'S OWN
32 COUNSEL, AND PROVIDED FURTHER THAT THE ACTUAL OR ALLEGED ACT, ERROR OR
33 OMISSION DID NOT RESULT FROM THAT PERSON'S INTENTIONAL OR WILFUL OR WANTON
34 MISCONDUCT.

35 3. THE COMMISSION SHALL INDEMNIFY AND HOLD HARMLESS ANY MEMBER,
36 OFFICER, EXECUTIVE DIRECTOR, EMPLOYEE OR REPRESENTATIVE OF THE COMMISSION
37 FOR THE AMOUNT OF ANY SETTLEMENT OR JUDGMENT OBTAINED AGAINST THAT PERSON
38 ARISING OUT OF ANY ACTUAL OR ALLEGED ACT, ERROR OR OMISSION THAT OCCURRED
39 WITHIN THE SCOPE OF COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, OR
40 THAT SUCH PERSON HAD A REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE
41 SCOPE OF COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT
42 THE ACTUAL OR ALLEGED ACT, ERROR OR OMISSION DID NOT RESULT FROM THE
43 INTENTIONAL OR WILFUL OR WANTON MISCONDUCT OF THAT PERSON.

44 SECTION 11. COORDINATED DATABASE

45 A. THE COMMISSION SHALL PROVIDE FOR THE DEVELOPMENT AND MAINTENANCE
46 OF A COORDINATED DATABASE AND REPORTING SYSTEM CONTAINING LICENSURE,

1 ADVERSE ACTION AND SIGNIFICANT INVESTIGATORY INFORMATION ON ALL LICENSED
2 INDIVIDUALS IN MEMBER STATES.

3 B. NOTWITHSTANDING ANY OTHER PROVISION OF STATE LAW TO THE
4 CONTRARY, A MEMBER STATE SHALL SUBMIT A UNIFORM DATA SET TO THE
5 COORDINATED DATABASE ON ALL INDIVIDUALS TO WHOM THIS COMPACT APPLIES AS
6 REQUIRED BY THE RULES OF THE COMMISSION, INCLUDING:

7 1. IDENTIFYING INFORMATION.

8 2. LICENSURE DATA.

9 3. SIGNIFICANT INVESTIGATORY INFORMATION.

10 4. ADVERSE ACTIONS AGAINST A LICENSE.

11 5. AN INDICATOR THAT A PRIVILEGE TO PRACTICE IS RESTRICTED,
12 SUSPENDED OR REVOKED.

13 6. NONCONFIDENTIAL INFORMATION RELATED TO ALTERNATIVE PROGRAM
14 PARTICIPATION.

15 7. ANY DENIAL OF AN APPLICATION FOR LICENSURE AND THE REASON OR
16 REASONS FOR SUCH DENIAL.

17 8. OTHER INFORMATION THAT MAY FACILITATE THE ADMINISTRATION OF THIS
18 COMPACT, AS DETERMINED BY THE RULES OF THE COMMISSION.

19 C. THE COORDINATED DATABASE ADMINISTRATOR SHALL PROMPTLY NOTIFY ALL
20 MEMBER STATES OF ANY ADVERSE ACTION TAKEN AGAINST, OR SIGNIFICANT
21 INVESTIGATIVE INFORMATION ON, ANY INDIVIDUAL IN A MEMBER STATE.

22 D. A MEMBER STATE THAT CONTRIBUTES INFORMATION TO THE COORDINATED
23 DATABASE MAY DESIGNATE INFORMATION THAT MAY NOT BE SHARED WITH THE PUBLIC
24 WITHOUT THE EXPRESS PERMISSION OF THAT MEMBER STATE.

25 E. ANY INFORMATION SUBMITTED TO THE COORDINATED DATABASE THAT IS
26 SUBSEQUENTLY REQUIRED TO BE EXPUNGED BY THE LAWS OF THE MEMBER STATE
27 CONTRIBUTING THE INFORMATION SHALL BE REMOVED FROM THE COORDINATED
28 DATABASE.

29 SECTION 12. RULEMAKING

30 A. THE COMMISSION SHALL EXERCISE ITS RULEMAKING POWERS PURSUANT TO
31 THE CRITERIA SET FORTH IN THIS SECTION AND THE RULES ADOPTED THEREUNDER.
32 RULES AND AMENDMENTS BECOME BINDING AS OF THE DATE SPECIFIED IN EACH RULE
33 OR AMENDMENT.

34 B. IF A MAJORITY OF THE LEGISLATURES OF THE MEMBER STATES REJECTS A
35 RULE BY ENACTING A STATUTE OR RESOLUTION IN THE SAME MANNER USED TO ADOPT
36 THIS COMPACT, THAT RULE SHALL HAVE NO FURTHER FORCE AND EFFECT IN ANY
37 MEMBER STATE.

38 C. RULES OR AMENDMENTS TO THE RULES SHALL BE ADOPTED AT A REGULAR
39 OR SPECIAL MEETING OF THE COMMISSION.

40 D. BEFORE THE COMMISSION PROMULGATES AND ADOPTS A FINAL RULE OR
41 RULES, AND AT LEAST SIXTY DAYS BEFORE THE MEETING AT WHICH THE RULE OR
42 RULES WILL BE CONSIDERED AND VOTED ON, THE COMMISSION SHALL FILE A NOTICE
43 OF PROPOSED RULEMAKING:

44 1. ON THE WEBSITE OF THE COMMISSION.

45 2. ON THE WEBSITE OF EACH MEMBER STATE EMS AUTHORITY OR IN THE
46 PUBLICATION IN WHICH EACH STATE WOULD OTHERWISE PUBLISH PROPOSED RULES.

1 E. THE NOTICE OF PROPOSED RULEMAKING SHALL INCLUDE ALL OF THE
2 FOLLOWING:

3 1. THE PROPOSED TIME, DATE AND LOCATION OF THE MEETING IN WHICH THE
4 RULE OR RULES WILL BE CONSIDERED AND VOTED ON.

5 2. THE TEXT OF THE PROPOSED RULE OR RULES OR AMENDMENT AND THE
6 REASON FOR THE PROPOSED RULE OR RULES.

7 3. A REQUEST FOR COMMENTS ON THE PROPOSED RULE OR RULES FROM ANY
8 INTERESTED PERSON.

9 4. THE MANNER IN WHICH INTERESTED PERSONS MAY SUBMIT NOTICE TO THE
10 COMMISSION OF THEIR INTENTION TO ATTEND THE PUBLIC HEARING AND ANY WRITTEN
11 COMMENTS.

12 F. BEFORE ADOPTING A PROPOSED RULE, THE COMMISSION SHALL ALLOW
13 PERSONS TO SUBMIT WRITTEN DATA, FACTS, OPINIONS AND ARGUMENTS, WHICH SHALL
14 BE MADE AVAILABLE TO THE PUBLIC.

15 G. THE COMMISSION SHALL GRANT AN OPPORTUNITY FOR A PUBLIC HEARING
16 BEFORE IT ADOPTS A RULE OR AMENDMENT IF A HEARING IS REQUESTED BY ANY OF
17 THE FOLLOWING:

18 1. AT LEAST TWENTY-FIVE PERSONS.

19 2. A GOVERNMENTAL SUBDIVISION OR AGENCY.

20 3. AN ASSOCIATION HAVING AT LEAST TWENTY-FIVE MEMBERS.

21 H. IF A HEARING IS HELD ON THE PROPOSED RULE OR AMENDMENT, THE
22 COMMISSION SHALL PUBLISH THE PLACE, TIME AND DATE OF THE SCHEDULED PUBLIC
23 HEARING, AND THE FOLLOWING APPLY:

24 1. ALL PERSONS WISHING TO BE HEARD AT THE HEARING SHALL NOTIFY THE
25 EXECUTIVE DIRECTOR OF THE COMMISSION OR OTHER DESIGNATED MEMBER IN WRITING
26 AT LEAST FIVE BUSINESS DAYS BEFORE THE SCHEDULED DATE OF THE HEARING OF
27 THEIR DESIRE TO APPEAR AND TESTIFY AT THE HEARING.

28 2. HEARINGS SHALL BE CONDUCTED IN A MANNER PROVIDING EACH PERSON
29 WHO WISHES TO COMMENT A FAIR AND REASONABLE OPPORTUNITY TO COMMENT ORALLY
30 OR IN WRITING.

31 3. A TRANSCRIPT OF THE HEARING IS NOT REQUIRED UNLESS A WRITTEN
32 REQUEST FOR A TRANSCRIPT IS MADE, IN WHICH CASE THE PERSON REQUESTING THE
33 TRANSCRIPT SHALL BEAR THE COST OF PRODUCING THE TRANSCRIPT. A RECORDING
34 MAY BE MADE IN LIEU OF A TRANSCRIPT UNDER THE SAME TERMS AND CONDITIONS AS
35 A TRANSCRIPT. THIS PARAGRAPH DOES NOT PRECLUDE THE COMMISSION FROM MAKING
36 A TRANSCRIPT OR RECORDING OF THE HEARING IF IT SO CHOOSES.

37 4. THIS SECTION DOES NOT REQUIRE A SEPARATE HEARING ON EACH RULE.
38 RULES MAY BE GROUPED FOR THE CONVENIENCE OF THE COMMISSION AT HEARINGS
39 REQUIRED BY THIS SECTION.

40 I. FOLLOWING THE SCHEDULED HEARING DATE, OR BY THE CLOSE OF
41 BUSINESS ON THE SCHEDULED HEARING DATE IF THE HEARING WAS NOT HELD, THE
42 COMMISSION SHALL CONSIDER ALL WRITTEN AND ORAL COMMENTS RECEIVED.

43 J. THE COMMISSION, BY MAJORITY VOTE OF ALL MEMBERS, SHALL TAKE
44 FINAL ACTION ON THE PROPOSED RULE AND SHALL DETERMINE THE EFFECTIVE DATE
45 OF THE RULE, IF ANY, BASED ON THE RULEMAKING RECORD AND THE FULL TEXT OF
46 THE RULE.

1 K. IF NO WRITTEN NOTICE OF INTENT TO ATTEND THE PUBLIC HEARING BY
2 INTERESTED PARTIES IS RECEIVED, THE COMMISSION MAY PROCEED WITH
3 PROMULGATING THE PROPOSED RULE WITHOUT A PUBLIC HEARING.

4 L. ON A DETERMINATION THAT AN EMERGENCY EXISTS, THE COMMISSION MAY
5 CONSIDER AND ADOPT AN EMERGENCY RULE WITHOUT PRIOR NOTICE, OPPORTUNITY FOR
6 COMMENT OR HEARING, PROVIDED THAT THE USUAL RULEMAKING PROCEDURES PROVIDED
7 IN THIS COMPACT AND IN THIS SECTION ARE RETROACTIVELY APPLIED TO THE RULE
8 AS SOON AS REASONABLY POSSIBLE, IN NO EVENT LATER THAN NINETY DAYS AFTER
9 THE EFFECTIVE DATE OF THE RULE. FOR THE PURPOSES OF THIS SUBSECTION, AN
10 EMERGENCY RULE IS ONE THAT MUST BE ADOPTED IMMEDIATELY IN ORDER TO DO ANY
11 OF THE FOLLOWING:

12 1. MEET AN IMMINENT THREAT TO PUBLIC HEALTH, SAFETY OR WELFARE.
13 2. PREVENT A LOSS OF COMMISSION OR MEMBER STATE MONIES.
14 3. MEET A DEADLINE FOR THE PROMULGATION OF AN ADMINISTRATIVE RULE
15 THAT IS ESTABLISHED BY FEDERAL LAW OR RULE.

16 4. PROTECT THE PUBLIC HEALTH AND SAFETY.

17 M. THE COMMISSION OR AN AUTHORIZED COMMITTEE OF THE COMMISSION MAY
18 DIRECT REVISIONS TO A PREVIOUSLY ADOPTED RULE OR AMENDMENT FOR PURPOSES OF
19 CORRECTING TYPOGRAPHICAL ERRORS, ERRORS IN FORMAT, ERRORS IN CONSISTENCY
20 OR GRAMMATICAL ERRORS. PUBLIC NOTICE OF ANY REVISIONS SHALL BE POSTED ON
21 THE WEBSITE OF THE COMMISSION. THE REVISION SHALL BE SUBJECT TO CHALLENGE
22 BY ANY PERSON FOR A PERIOD OF THIRTY DAYS AFTER POSTING. THE REVISION MAY
23 BE CHALLENGED ONLY ON GROUNDS THAT THE REVISION RESULTS IN A MATERIAL
24 CHANGE TO A RULE. A CHALLENGE SHALL BE MADE IN WRITING AND DELIVERED TO
25 THE EXECUTIVE DIRECTOR OF THE COMMISSION BEFORE THE END OF THE NOTICE
26 PERIOD. IF NO CHALLENGE IS MADE, THE REVISION WILL TAKE EFFECT WITHOUT
27 FURTHER ACTION. IF THE REVISION IS CHALLENGED, THE REVISION MAY NOT TAKE
28 EFFECT WITHOUT THE APPROVAL OF THE COMMISSION.

29 SECTION 13. OVERSIGHT, DISPUTE RESOLUTION AND ENFORCEMENT

30 A. OVERSIGHT OF THE COMMISSION IS AS FOLLOWS:

31 1. THE EXECUTIVE, LEGISLATIVE AND JUDICIAL BRANCHES OF STATE
32 GOVERNMENT IN EACH MEMBER STATE SHALL ENFORCE THIS COMPACT AND TAKE ALL
33 ACTIONS NECESSARY AND APPROPRIATE TO EFFECTUATE THIS COMPACT'S PURPOSES
34 AND INTENT. THIS COMPACT AND THE RULES PROMULGATED HEREUNDER SHALL HAVE
35 STANDING AS STATUTORY LAW.

36 2. ALL COURTS SHALL TAKE JUDICIAL NOTICE OF THIS COMPACT AND THE
37 RULES IN ANY JUDICIAL OR ADMINISTRATIVE PROCEEDING IN A MEMBER STATE
38 PERTAINING TO THE SUBJECT MATTER OF THIS COMPACT, WHICH MAY AFFECT THE
39 POWERS, RESPONSIBILITIES OR ACTIONS OF THE COMMISSION.

40 3. THE COMMISSION IS ENTITLED TO RECEIVE SERVICE OF PROCESS IN ANY
41 SUCH PROCEEDING AND SHALL HAVE STANDING TO INTERVENE IN SUCH A PROCEEDING
42 FOR ALL PURPOSES. FAILURE TO PROVIDE SERVICE OF PROCESS TO THE COMMISSION
43 RENDERS A JUDGMENT OR ORDER VOID AS TO THE COMMISSION, THIS COMPACT OR
44 PROMULGATED RULES.

45 B. DEFAULT, TECHNICAL ASSISTANCE AND TERMINATION ARE AS FOLLOWS:

1 1. IF THE COMMISSION DETERMINES THAT A MEMBER STATE HAS DEFAULTED
2 IN THE PERFORMANCE OF ITS OBLIGATIONS OR RESPONSIBILITIES UNDER THIS
3 COMPACT OR THE PROMULGATED RULES, THE COMMISSION SHALL:

4 (a) PROVIDE WRITTEN NOTICE TO THE DEFAULTING STATE AND OTHER MEMBER
5 STATES OF THE NATURE OF THE DEFAULT, THE PROPOSED MEANS OF CURING THE
6 DEFAULT AND ANY OTHER ACTION TO BE TAKEN BY THE COMMISSION.

7 (b) PROVIDE REMEDIAL TRAINING AND SPECIFIC TECHNICAL ASSISTANCE
8 REGARDING THE DEFAULT.

9 2. IF A STATE IN DEFAULT FAILS TO CURE THE DEFAULT, THE DEFAULTING
10 STATE MAY BE TERMINATED FROM THIS COMPACT ON AN AFFIRMATIVE VOTE OF A
11 MAJORITY OF THE MEMBER STATES, AND ALL RIGHTS, PRIVILEGES AND BENEFITS
12 CONFERRED BY THIS COMPACT MAY BE TERMINATED ON THE EFFECTIVE DATE OF
13 TERMINATION. A CURE OF THE DEFAULT DOES NOT RELIEVE THE OFFENDING STATE
14 OF OBLIGATIONS OR LIABILITIES INCURRED DURING THE PERIOD OF DEFAULT.

15 3. TERMINATION OF MEMBERSHIP IN THIS COMPACT SHALL BE IMPOSED ONLY
16 AFTER ALL OTHER MEANS OF SECURING COMPLIANCE HAVE BEEN EXHAUSTED. NOTICE
17 OF INTENT TO SUSPEND OR TERMINATE SHALL BE GIVEN BY THE COMMISSION TO THE
18 GOVERNOR, THE MAJORITY AND MINORITY LEADERS OF THE DEFAULTING STATE'S
19 LEGISLATURE AND EACH MEMBER STATE.

20 4. A STATE THAT HAS BEEN TERMINATED IS RESPONSIBLE FOR ALL
21 ASSESSMENTS, OBLIGATIONS AND LIABILITIES INCURRED THROUGH THE EFFECTIVE
22 DATE OF TERMINATION, INCLUDING OBLIGATIONS THAT EXTEND BEYOND THE
23 EFFECTIVE DATE OF TERMINATION.

24 5. THE COMMISSION SHALL NOT BEAR ANY COSTS RELATED TO A STATE THAT
25 IS FOUND TO BE IN DEFAULT OR THAT HAS BEEN TERMINATED FROM THIS COMPACT,
26 UNLESS AGREED ON IN WRITING BETWEEN THE COMMISSION AND THE DEFAULTING
27 STATE.

28 6. THE DEFAULTING STATE MAY APPEAL THE ACTION OF THE COMMISSION BY
29 PETITIONING THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA
30 OR THE FEDERAL DISTRICT WHERE THE COMMISSION HAS ITS PRINCIPAL OFFICES.
31 THE PREVAILING MEMBER STATE SHALL BE AWARDED ALL COSTS OF SUCH LITIGATION,
32 INCLUDING REASONABLE ATTORNEY FEES.

33 C. DISPUTE RESOLUTION IS AS FOLLOWS:

34 1. ON REQUEST BY A MEMBER STATE, THE COMMISSION SHALL ATTEMPT TO
35 RESOLVE DISPUTES RELATED TO THIS COMPACT THAT ARISE AMONG MEMBER STATES
36 AND BETWEEN MEMBER AND NONMEMBER STATES.

37 2. THE COMMISSION SHALL PROMULGATE A RULE PROVIDING FOR BOTH
38 MEDIATION AND BINDING DISPUTE RESOLUTION FOR DISPUTES AS APPROPRIATE.

39 D. ENFORCEMENT IS AS FOLLOWS:

40 1. THE COMMISSION, IN THE REASONABLE EXERCISE OF ITS DISCRETION,
41 SHALL ENFORCE THE PROVISIONS AND RULES OF THIS COMPACT.

42 2. BY MAJORITY VOTE, THE COMMISSION MAY INITIATE LEGAL ACTION IN
43 THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA OR THE
44 FEDERAL DISTRICT WHERE THE COMMISSION HAS ITS PRINCIPAL OFFICES AGAINST A
45 MEMBER STATE IN DEFAULT TO ENFORCE COMPLIANCE WITH THE PROVISIONS OF THE
46 COMPACT AND ITS PROMULGATED RULES AND BYLAWS. THE RELIEF SOUGHT MAY
47 INCLUDE BOTH INJUNCTIVE RELIEF AND DAMAGES. IF JUDICIAL ENFORCEMENT IS

1 NECESSARY, THE PREVAILING MEMBER STATE SHALL BE AWARDED ALL COSTS OF SUCH
2 LITIGATION, INCLUDING REASONABLE ATTORNEY FEES.

3 3. THE REMEDIES PRESCRIBED IN THIS COMPACT SHALL NOT BE THE
4 EXCLUSIVE REMEDIES OF THE COMMISSION. THE COMMISSION MAY PURSUE ANY OTHER
5 REMEDIES AVAILABLE UNDER FEDERAL OR STATE LAW.

6 SECTION 14. DATE OF IMPLEMENTATION OF THE INTERSTATE
7 COMMISSION FOR EMS PERSONNEL PRACTICE AND ASSOCIATED
8 RULES, WITHDRAWAL AND AMENDMENT

9 A. THIS COMPACT IS EFFECTIVE ON THE DATE ON WHICH THE COMPACT
10 STATUTE IS ENACTED INTO LAW IN THE TENTH MEMBER STATE. THE PROVISIONS,
11 WHICH BECOME EFFECTIVE AT THAT TIME, SHALL BE LIMITED TO THE POWERS
12 GRANTED TO THE COMMISSION RELATING TO ASSEMBLY AND THE PROMULGATION OF
13 RULES. THEREAFTER, THE COMMISSION SHALL MEET AND EXERCISE RULEMAKING
14 POWERS NECESSARY TO IMPLEMENT AND ADMINISTER THIS COMPACT.

15 B. ANY STATE THAT JOINS THIS COMPACT AFTER THE COMMISSION'S INITIAL
16 ADOPTION OF THE RULES IS SUBJECT TO THE RULES AS THEY EXIST ON THE DATE ON
17 WHICH THIS COMPACT BECOMES LAW IN THAT STATE. ANY RULE THAT HAS BEEN
18 PREVIOUSLY ADOPTED BY THE COMMISSION HAS THE FULL FORCE AND EFFECT OF LAW
19 ON THE DAY THIS COMPACT BECOMES LAW IN THAT STATE.

20 C. ANY MEMBER STATE MAY WITHDRAW FROM THIS COMPACT BY ENACTING A
21 STATUTE REPEALING THE SAME, AND THE FOLLOWING APPLY:

22 1. A MEMBER STATE'S WITHDRAWAL DOES NOT TAKE EFFECT UNTIL SIX
23 MONTHS AFTER ENACTMENT OF THE REPEALING STATUTE.

24 2. WITHDRAWAL DOES NOT AFFECT THE CONTINUING REQUIREMENT OF THE
25 WITHDRAWING STATE'S EMS AUTHORITY TO COMPLY WITH THE INVESTIGATIVE AND
26 ADVERSE ACTION REPORTING REQUIREMENTS OF THIS ACT BEFORE THE EFFECTIVE
27 DATE OF WITHDRAWAL.

28 D. THIS COMPACT DOES NOT INVALIDATE OR PREVENT ANY EMS PERSONNEL
29 LICENSURE AGREEMENT OR OTHER COOPERATIVE ARRANGEMENT BETWEEN A MEMBER
30 STATE AND A NONMEMBER STATE THAT DOES NOT CONFLICT WITH THE PROVISIONS OF
31 THIS COMPACT.

32 E. THIS COMPACT MAY BE AMENDED BY THE MEMBER STATES. AN AMENDMENT
33 TO THIS COMPACT DOES NOT BECOME EFFECTIVE AND BINDING ON ANY MEMBER STATE
34 UNTIL IT IS ENACTED INTO THE LAWS OF ALL MEMBER STATES.

35 SECTION 15. CONSTRUCTION AND SEVERABILITY

36 THIS COMPACT SHALL BE LIBERALLY CONSTRUED SO AS TO EFFECTUATE THE
37 PURPOSES OF THIS COMPACT. IF THIS COMPACT IS HELD CONTRARY TO THE
38 CONSTITUTION OF ANY STATE MEMBER THERETO, THIS COMPACT REMAINS IN FULL
39 FORCE AND EFFECT AS TO THE REMAINING MEMBER STATES. THIS COMPACT DOES NOT
40 SUPERSEDE STATE LAW OR RULES RELATED TO LICENSURE OF EMS AGENCIES.

41 <<Sec. 5. Section 41-619.51, Arizona Revised Statutes, is amended
42 to read:

43 41-619.51. Definitions

44 In this article, unless the context otherwise requires:

45 1. "Agency" means the supreme court, the department of economic
46 security, the department of child safety, the department of education, the
47 department of health services, the department of juvenile corrections, the

1 department of emergency and military affairs, the department of public
2 safety, the department of transportation, the state real estate
3 department, the department of insurance and financial institutions, the
4 Arizona game and fish department, the Arizona department of agriculture,
5 the board of examiners of nursing care institution administrators and
6 assisted living facility managers, the state board of dental examiners,
7 the Arizona state board of pharmacy, the board of physical therapy, the
8 state board of psychologist examiners, the board of athletic training, the
9 board of occupational therapy examiners, the state board of podiatry
10 examiners, the acupuncture board of examiners, the state board of
11 technical registration, the board of massage therapy, the board of
12 behavioral health examiners or the Arizona department of housing.

13 2. "Board" means the board of fingerprinting.

14 3. "Central registry exception" means notification to the
15 department of economic security, the department of child safety or the
16 department of health services, as appropriate, pursuant to section
17 41-619.57 that the person is not disqualified because of a central
18 registry check conducted pursuant to section 8-804.

19 4. "Expedited review" means an examination, in accordance with
20 board rule, of the documents an applicant submits by the board or its
21 hearing officer without the applicant being present.

22 5. "Good cause exception" means the issuance of a fingerprint
23 clearance card to an employee pursuant to section 41-619.55.

24 6. "Person" means a person who is required to be fingerprinted
25 pursuant to this article or who is subject to a central registry check and
26 any of the following:

- 27 (a) Section 3-314.
- 28 (b) Section 8-105.
- 29 (c) Section 8-322.
- 30 (d) Section 8-463.
- 31 (e) Section 8-509.
- 32 (f) Section 8-802.
- 33 (g) Section 8-804.
- 34 (h) Section 15-183.
- 35 (i) Section 15-503.
- 36 (j) Section 15-512.
- 37 (k) Section 15-534.
- 38 (l) Section 15-763.01.
- 39 (m) Section 15-782.02.
- 40 (n) Section 15-1330.
- 41 (o) Section 15-1881.
- 42 (p) Section 17-215.
- 43 (q) Section 28-3228.
- 44 (r) Section 28-3413.
- 45 (s) Section 32-122.02.
- 46 (t) Section 32-122.05.
- 47 (u) Section 32-122.06.

1 (v) Section 32-823.
 2 (w) Section 32-1232.
 3 (x) Section 32-1276.01.
 4 (y) Section 32-1284.
 5 (z) Section 32-1297.01.
 6 (aa) Section 32-1904.
 7 (bb) Section 32-1941.
 8 (cc) Section 32-1982.
 9 (dd) Section 32-2022.
 10 (ee) Section 32-2063.
 11 (ff) Section 32-2108.01.
 12 (gg) Section 32-2123.
 13 (hh) Section 32-2371.
 14 (ii) Section 32-3271.
 15 (jj) Section 32-3430.
 16 (kk) Section 32-3620.
 17 (ll) Section 32-3668.
 18 (mm) Section 32-3669.
 19 (nn) Section 32-3922.
 20 (oo) Section 32-3924.
 21 (pp) Section 32-4128.
 22 (qq) Section 32-4222.
 23 (rr) Section 36-113.
 24 (ss) Section 36-207.
 25 (tt) Section 36-411.
 26 (uu) Section 36-425.03.
 27 (vv) Section 36-446.04.
 28 (ww) Section 36-594.01.
 29 (xx) Section 36-594.02.
 30 (yy) Section 36-766.01.
 31 (zz) Section 36-882.
 32 (aaa) Section 36-883.02.
 33 (bbb) Section 36-897.01.
 34 (ccc) Section 36-897.03.
 35 (ddd) Section 36-1940.
 36 (eee) Section 36-1940.01.
 37 (fff) Section 36-2069.
 38 ~~[(ggg)]~~ SECTION 36-2202.]
 39 ~~[(ggg)]~~ [(hhh)] Section 36-3008.
 40 ~~[(hhh)]~~ [(iii)] Section 41-619.53.
 41 ~~[(iii)]~~ [(jjj)] Section 41-1964.
 42 ~~[(jjj)]~~ [(kkk)] Section 41-1967.01.
 43 ~~[(kkk)]~~ [(lll)] Section 41-1968.
 44 ~~[(lll)]~~ [(mmm)] Section 41-1969.
 45 ~~[(mmm)]~~ [(nnn)] Section 41-2814.
 46 ~~[(nnn)]~~ [(ooo)] Section 41-4025.
 47 ~~[(ooo)]~~ [(ppp)] Section 46-141, subsection A or B.

1 ~~[[ppp]]~~ ~~[[qqq]]~~ Section 46-321.>>

2 <<Sec. 6. Section 41-1758, Arizona Revised Statutes, is amended to
3 read:

4 41-1758. Definitions

5 In this article, unless the context otherwise requires:

6 1. "Agency" means the supreme court, the department of economic
7 security, the department of child safety, the department of education, the
8 department of health services, the department of juvenile corrections, the
9 department of emergency and military affairs, the department of public
10 safety, the department of transportation, the state real estate
11 department, the department of insurance and financial institutions, the
12 board of fingerprinting, the Arizona game and fish department, the Arizona
13 department of agriculture, the board of examiners of nursing care
14 institution administrators and assisted living facility managers, the
15 state board of dental examiners, the Arizona state board of pharmacy, the
16 board of physical therapy, the state board of psychologist examiners, the
17 board of athletic training, the board of occupational therapy examiners,
18 the state board of podiatry examiners, the acupuncture board of examiners,
19 the state board of technical registration, the board of massage therapy,
20 the board of behavioral health examiners or the Arizona department of
21 housing.

22 2. "Division" means the fingerprinting division in the department
23 of public safety.

24 3. "Electronic or internet-based fingerprinting services" means a
25 secure system for digitizing applicant fingerprints and transmitting the
26 applicant data and fingerprints of a person or entity submitting
27 fingerprints to the department of public safety for any authorized purpose
28 under this title. For the purposes of this paragraph, "secure system"
29 means a system that complies with the information technology security
30 policy approved by the department of public safety.

31 4. "Good cause exception" means the issuance of a fingerprint
32 clearance card to an applicant pursuant to section 41-619.55.

33 5. "Person" means a person who is required to be fingerprinted
34 pursuant to any of the following:

- 35 (a) Section 3-314.
- 36 (b) Section 8-105.
- 37 (c) Section 8-322.
- 38 (d) Section 8-463.
- 39 (e) Section 8-509.
- 40 (f) Section 8-802.
- 41 (g) Section 15-183.
- 42 (h) Section 15-503.
- 43 (i) Section 15-512.
- 44 (j) Section 15-534.
- 45 (k) Section 15-763.01.
- 46 (l) Section 15-782.02.
- 47 (m) Section 15-1330.

1 (n) Section 15-1881.
2 (o) Section 17-215.
3 (p) Section 28-3228.
4 (q) Section 28-3413.
5 (r) Section 32-122.02.
6 (s) Section 32-122.05.
7 (t) Section 32-122.06.
8 (u) Section 32-823.
9 (v) Section 32-1232.
10 (w) Section 32-1276.01.
11 (x) Section 32-1284.
12 (y) Section 32-1297.01.
13 (z) Section 32-1904.
14 (aa) Section 32-1941.
15 (bb) Section 32-1982.
16 (cc) Section 32-2022.
17 (dd) Section 32-2063.
18 (ee) Section 32-2108.01.
19 (ff) Section 32-2123.
20 (gg) Section 32-2371.
21 (hh) Section 32-3271.
22 (ii) Section 32-3430.
23 (jj) Section 32-3620.
24 (kk) Section 32-3668.
25 (ll) Section 32-3669.
26 (mm) Section 32-3922.
27 (nn) Section 32-3924.
28 (oo) Section 32-4128.
29 (pp) Section 32-4222.
30 (qq) Section 36-113.
31 (rr) Section 36-207.
32 (ss) Section 36-411.
33 (tt) Section 36-425.03.
34 (uu) Section 36-446.04.
35 (vv) Section 36-594.01.
36 (ww) Section 36-594.02.
37 (xx) Section 36-766.01.
38 (yy) Section 36-882.
39 (zz) Section 36-883.02.
40 (aaa) Section 36-897.01.
41 (bbb) Section 36-897.03.
42 (ccc) Section 36-1940.
43 (ddd) Section 36-1940.01.
44 (eee) Section 36-2069.
45 [(fff) SECTION 36-2202.]
46 [(~~fff~~) [(ggg)] Section 36-3008.]
47 [(~~ggg~~) [(hhh)] Section 41-619.52.]

1 ~~[(tttt)]~~ [(iii)] Section 41-619.53.
2 ~~[(tttt)]~~ [(jjj)] Section 41-1964.
3 ~~[(jjjj)]~~ [(kkk)] Section 41-1967.01.
4 ~~[(kkkk)]~~ [(lll)] Section 41-1968.
5 ~~[(tttt)]~~ [(mmm)] Section 41-1969.
6 ~~[(mmmm)]~~ [(nnn)] Section 41-2814.
7 ~~[(nnnn)]~~ [(ooo)] Section 41-4025.
8 ~~[(oooo)]~~ [(ppp)] Section 46-141, subsection A or B.
9 ~~[(pppp)]~~ [(qqq)] Section 46-321.
10 6. "Rap back services" has the same meaning prescribed in section
11 41-1750.
12 7. "Vulnerable adult" has the same meaning prescribed in section
13 13-3623.>>
14 <<Sec. 7. Section 41-1758.01, Arizona Revised Statutes, is amended
15 to read:
16 41-1758.01. Fingerprinting division: powers and duties
17 A. The fingerprinting division is established in the department of
18 public safety and shall:
19 1. Conduct fingerprint background checks for persons and applicants
20 who are seeking licenses from state agencies, employment with licensees,
21 contract providers and state agencies or employment or educational
22 opportunities with agencies that require fingerprint background checks
23 pursuant to sections 3-314, 8-105, 8-322, 8-463, 8-509, 8-802, 15-183,
24 15-503, 15-512, 15-534, 15-763.01, 15-782.02, 15-1330, 15-1881, 17-215,
25 28-3228, 28-3413, 32-122.02, 32-122.05, 32-122.06, 32-823, 32-1232,
26 32-1276.01, 32-1284, 32-1297.01, 32-1904, 32-1941, 32-1982, 32-2022,
27 32-2063, 32-2108.01, 32-2123, 32-2371, 32-3271, 32-3430, 32-3620, 32-3668,
28 32-3669, 32-3922, 32-3924, 32-4128, 32-4222, 36-113, 36-207, 36-411,
29 36-425.03, 36-446.04, 36-594.01, 36-594.02, 36-766.01, 36-882, 36-883.02,
30 36-897.01, 36-897.03, 36-1940, 36-1940.01, 36-2069, [36-2202.] 36-3008,
31 41-619.52, 41-619.53, 41-1964, 41-1967.01, 41-1968, 41-1969, 41-2814 and
32 41-4025, section 46-141, subsection A or B and section 46-321.
33 2. Issue fingerprint clearance cards. On issuance, a fingerprint
34 clearance card becomes the personal property of the cardholder and the
35 cardholder shall retain possession of the fingerprint clearance card.
36 3. On submission of an application for a fingerprint clearance
37 card, collect the fees established by the board of fingerprinting pursuant
38 to section 41-619.53 and deposit, pursuant to sections 35-146 and 35-147,
39 the monies collected in the board of fingerprinting fund.
40 4. Inform in writing each person who submits fingerprints for a
41 fingerprint background check of the right to petition the board of
42 fingerprinting for a good cause exception pursuant to section 41-1758.03,
43 41-1758.04 or 41-1758.07.
44 5. If after conducting a state and federal criminal history records
45 check the division determines that it is not authorized to issue a
46 fingerprint clearance card to a person, inform the person in writing that
47 the division is not authorized to issue a fingerprint clearance card. The

1 notice shall include the criminal history information on which the denial
2 was based. This criminal history information is subject to dissemination
3 restrictions pursuant to section 41-1750 and Public Law 92-544.

4 6. Notify the person in writing if the division suspends, revokes
5 or places a driving restriction notation on a fingerprint clearance card
6 pursuant to section 41-1758.04. The notice shall include the criminal
7 history information on which the suspension, revocation or placement of
8 the driving restriction notation was based. This criminal history
9 information is subject to dissemination restrictions pursuant to section
10 41-1750 and Public Law 92-544.

11 7. Administer and enforce this article.

12 B. The fingerprinting division may contract for electronic or
13 internet-based fingerprinting services through an entity or entities for
14 the acquisition and transmission of applicant fingerprint and data
15 submissions to the department, including identity verified fingerprints
16 pursuant to section 15-106. The entity or entities contracted by the
17 department of public safety may charge the applicant a fee for services
18 provided pursuant to this article. The entity or entities contracted by
19 the department of public safety shall comply with:

20 1. All information privacy and security measures and submission
21 standards established by the department of public safety.

22 2. The information technology security policy approved by the
23 department of public safety.>>

24 Enroll and engross to conform

25 Amend title to conform

SELINA BLISS

~~2437FloorBLISS.docx~~

~~03/04/2026~~

~~06:14 PM~~

~~C: MH~~

~~130VZHBMV~~

2437FloorBLISS.docx

03/05/2026

10:35 AM

H: AG/l's

130VZHBMV